

FEDERAL MARITIME COMMISSION

FRANK J. KUZELA

v.

A.P. MOLLER-MAERSK A/S

Docket No.1883(F)

Served: October 14, 2008

BY THE COMMISSION: Joseph E. BRENNAN, Harold J. CREEL, Jr., and Rebecca F. DYE, *Commissioners*.

ORDER

On July 24, 2008, *pro se* Complainant Frank J. Kuzela ("Kuzela") filed with the Commission his "Request for Enlargement of Time to File and Exceptions" to the June 26, 2008 Initial Decision dismissing with prejudice Kuzela's complaint against A.P. Moller-Maersk A/S ("Maersk"). By Notice served July 30, 2008, the Commission determined to accept Kuzela's late-filed exceptions and established the date for receipt of Maersk's Response to the Exceptions. Respondent Maersk timely filed its Response on August 20, 2008.

In his June 26 Initial Decision, the Administrative Law Judge found no violation by respondent Maersk of section 10(d)(1)

of the Shipping Act of 1984. The ALJ determined, as a finding of fact, that container AMFU8597787, was inspected in Miami, Florida when it was offloaded from the M/V OLUF MAERSK and was shown to be undamaged at that time. Initial Decision at 22. Thereafter, Kuzela's trucking contractor, Nighthawk Enterprises ("Nighthawk") assumed responsibility for container AMFU8597787. Initial Decision at 22. The container was reported as damaged when it was returned to the port empty by Nighthawk on November 1, 2004. Initial Decision at 23. The ALJ determined, as a matter of law, that Kuzela failed to present evidence establishing that his goods were damaged during a time when Maersk was responsible for their transportation, rather than subsequently when the container was under the control of Kuzela's contractor Nighthawk. Initial Decision at 24.

Upon exceptions, Kuzela claims that the hole in the container occurred when being unloaded from the vessel to the port. Request for Enlargement of Time to File and Exceptions, at 2. Kuzela states that the driver from Nighthawk took photos of the damage; however, Kuzela did not provide such photos before the ALJ, and has not done so in support of his Exceptions here. *Id.* The record shows only that the container was reported as damaged when it was returned to the port empty by Nighthawk on November 1, 2004. Response to Exceptions, Maersk App. 113.

Kuzela points to a "Mr. Ryder" of APM Terminals as having said that the damage had to have occurred from the time it was unloaded from the vessel to storing on land at the port of Miami. Request for Enlargement of Time to File and Exceptions, at 3. Maersk, however, provided a declaration by Mr. Robert Ryder in which Mr. Ryder states he never advised Mr. Kuzela of such and that he "had no information that would even allow me to make such a statement." Response to Exceptions, Maersk App. 106.

Additional evidence provided by Kuzela to support his exceptions include a letter from Nighthawk, as well as the Nighthawk Bill of Lading. Request for Enlargement of Time to File and Exceptions, at 9-10. Neither of these documents provides proof establishing that water damage occurred while Kuzela's household goods were in the custody of Maersk.

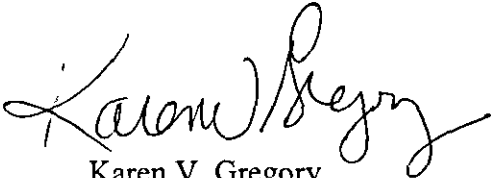
The ALJ's Initial Decision correctly notes that the complainant has the burden of proof to establish a violation of section 10(d)(1) of the Shipping Act. Initial Decision at 16; 46 C.F.R. § 502.155. The applicable standard of proof is one of "substantial evidence, an amount of information that would persuade a reasonable person that the necessary premise is more likely to be true than to be not true." Initial Decision at 16, citing *AHL Shipping Company v. Kinder Morgan Liquids Terminals, LLC*, FMC Docket No. 04-05, Initial Decision at 7 (June 2005), 2005 WL 1596715 at 3. There is no presumption of damages, and any damages claimed must be the proximate result of a violation of the statute in question. *James J. Flanagan Shipping Corp. v. Lake Charles Harbor and Terminal Dist.*, 30 S.R.R. 8, 13 (FMC, 2003), citing *Waterman v. Stockholms Rederiaktiebolag Svea*, 3 F.M.B. 248, 249 (1950).

Upon consideration of complainant's exceptions, we conclude that the ALJ's Initial Decision is factually and legally sound. Kuzela's exceptions do not overcome the ALJ's findings as to inadequate proof of the claim. Maersk provided evidence establishing that the container was not damaged at the time it was unloaded from the vessel on October 6, 2004, nor was it damaged at the time it left the port and entered into the custody of Nighthawk on October 28, 2004. Response to Exceptions, Maersk App. 111-112. Additionally, Maersk provided evidence showing that the container was, when returned to the port, reported as damaged. *Id.* at App. 113. Kuzela thus fails to provide persuasive evidence to counter the ALJ's findings, *i.e.* proof by which Kuzela demonstrates that the damage to his household goods in fact occurred while in the custody and control of Maersk.

Conclusion

NOW THEREFORE, IT IS ORDERED That the Exceptions filed by complainant Frank J. Kuzela to the June 26, 2008 Initial Decision in Docket No.1883(F) are hereby DENIED.

By the Commission.

A handwritten signature in black ink, appearing to read "Karen V. Gregory". The signature is fluid and cursive, with the first name "Karen" being more prominent than the last name "Gregory".

Karen V. Gregory
Secretary